



D E L H I P O L I C E

STANDING ORDER NO. 39/2018 **COMPASSIONATE GROUND APPOINTMENTS IN** **DELHI POLICE GENERAL SCHEME**

SCOPE AND APPLICATION

The Commissioner of Police, Delhi is competent to appoint a dependant member of the family of the deceased police employee, after relaxing only the procedure of recruitment but subject to fulfilling other requirements to Group 'C' posts in order to help the family of the deceased to overcome the serious economic crisis.

Applications for appointment on Compassionate Ground will be examined and decided by a Screening Committee comprising of Special Commissioner of Police (Hdqrs.), Joint Commissioner of Police (Hdqrs.) and Deputy Commissioner of Police (Establishment) headed by the Commissioner of Police, Delhi.

Compassionate ground appointment can be made in Group 'C' posts only against direct recruitment quota. The appointment on compassionate ground is not a matter of right. The Hon'ble Supreme Court has laid down the following important principles vide order dated 04.05.1994 in this regard in the case titled '*Umesh Kumar Nagpal Vs State of Haryana and Ors.*':-

- (i) Only dependents of an employee dying in harness leaving his family in penury and without any means of livelihood can be appointed on compassionate ground.
- (ii) The posts in Group 'C' (formerly Class-III) is the lowest posts in non-manual categories and hence they alone can be offered on compassionate grounds and no other post i.e. in the Group 'A' or Group 'B' category is expected or required to be given for this purpose as it is legally impermissible.
- (iii) The whole object of granting compassionate appointment is to enable the family to tide over the sudden crisis and to relieve the family of the deceased from financial destitution and to help it get over the emergency.

- (iv) Offering compassionate appointment as a matter of course irrespective of the financial condition of the family of the deceased or medically retired Government servant is legally impermissible.
- (v) Neither the qualifications of the applicant (dependent family member) nor the post held by the deceased or medically retired Government servant is relevant. If the applicant finds it below his dignity to accept the post offered, he or she is free not to do so. The post is not offered to cater to his status but to see the family through the economic calamity.
- (vi) Compassionate appointment cannot be granted after lapse of a reasonable period and it is not a vested right which can be exercised at any time in future.
- (vii) Compassionate appointment cannot be offered by an individual functionary on an ad-hoc basis.

Dependent family members of deceased Group 'C' MTS employee can also be considered and appointed in Group 'C' post provided he or she fulfills other required qualifications.

(2) ELIGIBILITY CRITERIA FOR APPOINTMENT ON COMPASSIONATE GROUND

- (i). The family is indigent and deserves immediate assistance for relief from financial destitution; and
- (ii). Applicant for compassionate appointment should be eligible and suitable for the post in all respects under the provisions of the relevant Recruitment Rules.

(3) DEFINITIONS

"Dependent Family Member" means -

- (i). spouse; or
- (ii). son (including adopted son); or
- (iii). Unmarried daughter (including adopted daughter); or
- (iv). Brother or un-married Sister in the case of unmarried Government servant, who was wholly dependent on the deceased employee.

"Government servant" for the purpose of these instructions means a Government servant appointed on regular basis and not one working on daily wages or casual or apprentice or *adhoc* or contract or re-employment basis.

"Service" includes extension in service (but not re-employment) after attaining the normal age of retirement.

"Re-employment" does not include employment of ex-serviceman before the normal age of retirement.

(4) ELIGIBILITY CRITERIA

Dependent family member of the following categories of Government servant shall be eligible for this scheme: -

- (i). Who dies while in service (including death by suicide);
or
- (ii). Who is retired on medical grounds under Rule 2 of the CCS (Medical Examination) Rules, 1957 or the corresponding provision in the Central Civil Service Regulations before attaining the age of 55 years (57 years for Group 'C', MTS) Government servants;
or
- (iii). Who is retired on medical grounds under Rule 38 of the CCS (Pension) Rules, 1972 or the corresponding provision in the Central Civil Service Regulations before attaining the age of 55 years (57 years for Group 'C', MTS) Government servants;.
- (iv). Who dies during the period of extension in regular service but not during re-employment.

NOTE

The benefit of compassionate ground appointment will not be available to the dependents of a Govt. Servant, in case the Govt. Servant was involved in any criminal cases and other undesirable activities or was dismissed from service for his proven involvement in criminal cases and other undesirable activities. While considering such requests, the results of the police investigation should also be taken into account.

(5) MISSING GOVERNMENT SERVANTS

The dependents of missing government servants will be considered for appointment on compassionate ground subject to fulfilling the following conditions:-

- (I) A request to grant the benefit of compassionate appointment can be considered only after a lapse of at least 2 years from the date of missing, provided that:-
 - (a) An FIR (or a Missing Report) to this effect has been lodged with the Police,
 - (b) The missing Govt. Servant is not traceable,
 - (c) The competent authority feels that the case is genuine.
- (II) This benefit will not be applicable to the case of a government servant:-

- (a) Who had less than 02 (two) years to retire on the date from which he or she has been missing; or
 - (b) Who is suspected to have committed fraud, or suspected to have joined any terrorist organization or suspected to have gone abroad.
- (III) Compassionate appointment in the case of a missing Government servant would not be a matter of right (and it will be subject to availability of vacancies and fulfillment of all other conditions, as specified).
- (IV) While considering such a request, the results of the Police investigation shall also be taken into account;
- (V) A decision on any such request for compassionate appointment shall be taken by the Screening Committee headed by the Commissioner of Police, Delhi.

(6) CASES WHERE THERE IS AN EARNING MEMBER

- (a) In deserving cases even where there is already an earning member in the family of the deceased employee, a dependent family member can be considered for appointment on compassionate ground.
- (b) Compassionate ground appointment will not be offered to the dependent of the deceased police personnel, where there is already an earning member i.e. Govt. Servant (including public sector undertaking). However, in case a married daughter of deceased is a Govt. employee then the Screening Committee will take a decision, keeping in view the status and all other aspects of the deceased's family.
- (c) Compassionate ground appointment will be offered by the Screening Committee in the initial or lowest rank or post to the dependent of the deceased police personnel.
- (d) In belated cases, the applicant can apply as long as he or she has not attained the maximum age, prescribed for the particular post for which he or she is applying.
- (e) In case of an unmarried police employee, his or her dependent brother or unmarried sister may be considered for this appointment. He or she will have to give undertaking to the effect that he or she will look after the other dependent members.

(7) DETERMINATION/AVAILABILITY OF VACANCIES

- (a) Appointment on compassionate grounds shall be made only on a regular basis and that too only if regular vacancies meant for that purpose are available.

- (b) Compassionate appointments can be made up to a maximum of 5% of vacancies falling under direct recruitment quota in Group 'C' posts. The appointing authorities shall have 5% of vacancies in the categories filled by direct recruitment. A person selected for appointment on compassionate grounds should be adjusted in the recruitment roster against the appropriate category, viz., SC/ST/OBC/General depending upon the category to which he belongs; e.g. if he belongs to SC category, he will be adjusted against SC reservation point, if he is ST/OBC, he will be adjusted against ST/OBC point and if he belongs to General category, he will be adjusted against the vacancy point meant for General category.

(8) PROCEDURE FOR FILING APPLICATION FOR APPOINTMENT ON COMPASSIONATE GROUND

- (a) Application for compassionate appointment should be submitted as early as possible after the death of the employee in the office of the DCsP Districts or Units where the deceased employee was posted at the time of his death. Department may take up the request for compassionate appointment even where the death took place in past few years, keeping in view the basic criteria that the family is in distress and needs such relief.
- (b) All Districts or Units DCsP shall use the prescribed proforma as in Appendix-I for collecting necessary information and processing the cases of compassionate appointments.
- (c) In the case where there is more than one dependent of the deceased, applying for compassionate ground appointment, concerned Districts or Units DCP should analyze and forward the genuine case only.
- (d) Concerned Districts or Units DCsP should forward only those cases, in which the candidate fulfills the criteria mentioned in this Standing Order i.e. Age, Education, Height, etc.
- (e) It should also be indicated in the Appendix-I as to whether the deceased was involved in any criminal case or was placed under suspension or facing court case or departmental proceedings etc. before his death.
- (f) Checking the genuineness of certificate of HTV Driving License is mandatory from the concerned Transport Authority before forwarding the case for the post of Constable (Driver).
- (g) The verification regarding movable/immovable property, number of dependents, financial position etc. in respect of the applicant may be got conducted (as per Appendix-II) through Special Branch, Delhi, if

(h) All compassionate ground appointment cases duly completed in all respect should be sent to Police Headquarters within three months for further action.

(i) The cut-off date for fixing the age of the candidates for compassionate ground appointments shall be the date of application subject to fulfilling other eligibility or criteria. Meeting of Screening Committee shall be held once in a six months or earlier or later, if the need so arises.

Prescribed					Relaxation			
					Being considered for C.G. Appointment			
Post	Age	Edu.	Height	Chest	Age	Edu.	Height	Chest
HC(Min) Male	18-25 Yrs. (Genl) Upto 28 Yrs. (OBC) Upto 30 Yrs. (SC/ST)	12 th Std.	165 Cms.	78-82 Cms	18-25 Yrs. (Genl) Upto 28 Yrs. (OBC) Upto 30 Yrs. (SC/ST)	11 th Std.	160 Cms.	73-77 Cms
HC(Min) Female	18-25 Yrs. (Genl) Upto 28 Yrs. (OBC) Upto 30 Yrs. (SC/ST)	12 th Std.	157 Cms.	-	18-25 Yrs. (Genl) Upto 28 Yrs. (OBC) Upto 30 Yrs. (SC/ST)	11 th Std.	152 Cms.	-
Ct. (Exe) Male	18-21 Yrs. (Genl) Upto 24 Yrs. (OBC) Upto 26 Yrs. (SC/ST)	12 th Std.	170 Cms.	81-85 Cms.	18-25 Yrs. (Genl & OBC) Upto 26 Yrs. (SC/ST)	11 th Std.	165 Cms.	76-80 Cms
Ct. (Exe) Female	18-25 Yrs. (Genl) Upto 28 Yrs. OBC Upto 30 Yrs. (SC/ST)	12 th Std.	157 Cms.	-	18-25 Yrs. (Genl) Upto 28 Yrs. OBC Upto 30 Yrs. (SC/ST)	11 th Std.	152 Cms.	-
Ct. (Dvr.)	21-30 Yrs. (Genl) Upto 33 Yrs. (OBC) Upto 35 Yrs. (SC/ST)	12 th Std.	170 Cms.	81-85 Cms.	21-30 Yrs. (Genl) Upto 33 Yrs. (OBC) Upto 35 Yrs. (SC/ST)	11 th Std.	165 Cms.	76-80 Cms
MTS	18-27 Yrs. (Genl) Upto 30 Yrs. (OBC) Upto 32 Yrs. (SC/ST)	10 th Std.	-	-	18-27 Yrs. (Genl) Upto 30 Yrs. (OBC) Upto 32 Yrs. (SC/ST)	10 th Std.	-	-
37, 40 & 42 Years for Physically handicapped (40% and above) for General, OBC and SC/ST categories respectively.								
WIDOW	Upto 45 years in all cadre	Physical and educational standards as per requirement of the posts.						

No request for appointment of technical post i.e. AWO/TPO etc. will be entertained on compassionate ground. The lower age limit should, however, in no case be relaxed below 18 years of age and no assurance will be given for considering the case in future.

Exemption

Compassionate appointments are exempted from observance of Recruitment procedures as laid down in Standing Orders dealing with the rest of different categories of the staff.

(10) MISCELLANEOUS

(i) Balanced and Objective Assessment on Financial Condition

The financial benefits received as per entitlement etc. by the family of the deceased Government servants under various welfare schemes are to be kept in view while considering cases of compassionate appointments besides the individuals personal assets particularly immovable property. It should be kept in mind that a house in the village or hometown or even in Delhi may not generate running income and as such possession of such property, unless it has tenants, providing enough rent regularly to sustain the individual etc., should not be a ground for rejection. It has been clarified that the intention is not that the requests should be rejected merely on the ground that the family has these benefits should be taken into account, the financial condition of the family has to be assessed taking into account its liabilities and all other relevant factors such as the presence of an earning member.

(ii) Widow Appointed on Compassionate Grounds Getting Re-married

A widow appointed on compassionate grounds will be allowed to continue in service even after her re-marriage.

(iii) Undertaking

A person appointed on compassionate grounds under the scheme should give an undertaking in writing (as given in Column-VII of **Appendix-II**) that he or she will maintain the other family members properly, who were dependent on the deceased or medically retired Government servant and in case it is proved subsequently (at any time) that the family members are being neglected or are not being maintained properly by the compassionate appointee, his or her appointment may be terminated forthwith.

(iv) No Request for Change in Post or Person

When a person has been appointed on compassionate ground to a particular post, the set of circumstances, which led to such appointment, should be deemed to have ceased to exist. Therefore:-

- a. He or she should strive in his or her career like his or her colleagues for future advancement and any request for appointment to any higher post on consideration of compassion should invariably be rejected.
- b. Once the case is approved for appointment on compassionate grounds, the offer cannot be transferred to any other persons and any request for the same should invariably be rejected unless the candidate is declared medically unfit or in case of any mis-happening to the candidate who has been selected for compassionate appointment.
- c. Once compassionate ground appointment has been approved, no request for change to higher post will be entertained.

(11) POWERS OF COMMISSIONER OF POLICE AND HON'BLE LT. GOVERNOR

- a. As per Rule 5(d) of the Delhi Police (Appointment & Recruitment) Rules-1980, notwithstanding the above rules, the Commissioner of Police shall be the competent authority to appoint in relaxation of the procedure of recruitment through the Employment Exchange and without subjecting to competitive test, the son or daughter of Delhi Police personnel who die in harness leaving their families in immediate need of assistance in terms of the instructions issued by the Govt. of India, MHA regarding such compassionate appointment.
- b. As per Rule 30 of the Delhi Police (Appointment & Recruitment) Rules-1980, under the head "Power to Relax", when the administrator is of the opinion that it is necessary or expedient so to do, he may, by order, for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any class, category, of persons or posts or in an individual case.

(12) NO BAN ON COMPASSIONATE APPOINTMENT

Compassionate appointments are exempted from the ban on filling up of the posts. Appointments should not be denied or delayed merely on the ground that there is re-organization in the Department, but should be made available to the person concerned if there is a vacancy meant for compassionate appointment and he or she is found eligible and suitable under the Scheme.

The Commissioner of Police, Delhi may relax any of the conditions laid down in the Standing Order as per requirement.

(13) SUPERSESSION CLAUSE

This Standing Order supersedes all previous instructions/standing orders issued on the subject.


11/7/18
(Amulya Patnaik),
Commissioner of Police:
Delhi.

O.B. No. 10 /RB/PHQ dated 12/07 /2018.

No. 251 - 400/Record Branch (AC-)/PHQ dated Delhi the 2/7/2018.

Copy forwarded for information and necessary action to the:-

1. All Special Commissioners of Police including MD/DPHC, Delhi.
2. All Joint Commissioners of Police, Delhi.
3. All Additional Commissioners of Police, including Principal, PTC, Delhi.
4. All Dy. Commissioners of Police of Districts/Units including FRRO, Delhi/New Delhi.
5. SO to Commissioner of Police, LA to Commissioner of Police, Delhi.
6. DCP/I.T. Centre with the direction to upload the Standing Order in Intra D.P. net.
7. All ACsP in PHQ.
8. All Inspectors/PHQ including Reader to CP/Delhi.
9. Librarian/PHQ.

**PROFORMA REGARDING EMPLOYMENT TO DEPENDENTS OF
GOVERNMENT SERVANTS DYING WHILE IN SERVICE / RETIRED ON
INVALID PENSION**

PART-A

I	Particulars of deceased/employee retired on invalid pension	
a)	Name of the Government Servant (deceased/retired on medical grounds.)	
b)	Designation of the Government servant	
c)	Date of birth of Deceased/Retired on medical ground Govt. Servant	
d)	Date of initial appointment in Government service in r/o Deceased/retired on medical grounds Govt. Servant.	
e)	Date of Superannuation of Deceased retired on medical ground, Govt. Servant	
f)	Date of Death/retirement on Medical grounds	
g)	Whether Group 'C' (MTS) or Not?	
h)	Total length of service rendered	
i)	Age at the time of Death	
j)	Whether permanent or temporary	
k)	Whether belonging to SC/ST/OBC/Genl.	
II	Particulars of the Candidate	
a)	Name of candidate for appointment	
b)	His/Her relationship with the Government Servant	
c)	Marital status of the applicant	
d)	Date of birth of candidate	
e)	Educational Qualification of candidate General Technical	
f)	Whether any other dependent has been appointed on compassionate ground	
g)	Height of the applicant	

	h)	Chest, if applicable	
III	Particulars of total assets left including amount :-		
	a)	Family Pension	
	b)	Retirement/Death Gratuity	
	c)	G.P.F Balance (DLIS)	
	d)	L.I. Policies (including PLI)	
	e)	C.G.E. Insurance amount + Saving fund	
	f)	Encashment of Leave	
	g)	D.P.W.S Fund	
	h)	Any other assets	
	i)	Amount of DLIS	
	Total (except family pension)		
IV	(a) Movable and immovable properties/ Agricultural Land etc., in the name of deceased government servant or any member of family, in Delhi or outside Delhi. (b) If yes, annual income earned and details thereof.		
V	Brief Particulars of Liabilities, if any		
VI	Residence particulars & Address		Rented / Own House / Govt. Accommodation(Enclose proof) Address : Post Office : Tehsil/Sub-division: District: Pin code : State:

VII Particulars of all dependents of the employee (if some are employed, their income and whether they are living together or separately)						
S.N	Name(s)	Relationship with the Government Servant	Date of birth /Age	Address	Employed or not (if employed particulars of employment and emoluments)	Marital Status
(1)	(2)	(3)	(4)	(5)	(6)	(7)
1.						
2.						
3.						

VII DECLARATION/UNDERTAKING

1. I hereby declare that the facts given by me above are, to the best of my knowledge, correct. If any of the facts herein mentioned are found to be incorrect or false at a future date, my services may be terminated and I would be prosecuted under section 177,193,197,198,199 & 200 of IPC.

2. I hereby also declare that I shall maintain properly the other family members who were dependent on the Government servant mentioned against I(a) of Part-A of this form and in case it is proved at any time that the said family members are being neglected or not being properly maintained by me, my appointment may be terminated.

Dated _____ Signature of the Candidate _____

Name :- _____

Address:- _____

I have verified that the facts mentioned by the candidate above, are correct.

Dated _____ Signature of the Welfare Officer of the Department with office stamp/seal

Name :- _____

Address :- _____

Rank, Name & Number with place of posting :- _____

ENCLOSURES:

1.	Death Certificate (in original)
2.	Copy of certificates as proof Educational qualification & experience, (Self Attested)
3.	Proof of Age/DOB of applicant & other family members (Self Attested)
4.	Copy of ration card (Self Attested)
5.	Copies of orders of all pension benefits i.e. PPO, GLIS, Savings etc. (Self Attested duly verified by administrative department concerned)
6.	NOC from other members of family (Self attested declaration/undertaking)
7.	Two Photographs of applicant. (Attested by the Department)
8.	Rent agreement, Rent receipt and proof of ownership of Landlord of last quarter if applicable.

NOTE: FURNISHING OF WRONG OR FALSE INFORMATION OR CERTIFICATE IS PUNISHABLE UNDER SECTION 177, 193, 197, 198, 199 & 200 OF IPC.

PART-B

(TO BE FILLED IN BY OFFICE IN WHICH EMPLOYMENT IS PROPOSED)

I	a)	Name of the Candidate for appointment	
	b)	His or her relationship with the Government servant	
	c)	Age (date of birth), educational qualifications and experience, if any.	
	d)	Post for which employment is proposed	
	e)	Whether there is vacancy in that post within the ceiling of 5% prescribed under the scheme of compassionate appointment	
	f)	Whether the post to be filled is included in the Central Secretariat Clerical Service or not	
	g)	Whether the relevant Recruitment Rules provide for direct recruitment	
	h)	Whether the candidate fulfils the requirements of the recruitment Rules for the Post	
	i)	Apart from waiver of Employment Exchange or Staff Selection Commission procedure what other relaxation are to be given.	
II	Whether the facts mentioned in Part-A have been verified by the office and if so, indicate the record		
III	If the Government servant died/retired on medical grounds more than 5 years back, reasons for delay in submission of case be provided.		
IV	Personal recommendation of the Head of the Department in the Ministry/ Department/Office		

SIGNATURES OF HEAD OF OFFICE
WITH OFFICE SEAL.

APPENDIX-II

ENQUIRY TO BE MADE BY SPECIAL BRANCH OR LOCAL POLICE

(A) DETAILS OF NUMBER OF FAMILY MEMBERS.

Name	Date of Birth & Age	Married/ Unmarried	Relationship with the deceased employee	Earning/ Non-earning	Occupation Govt./Pvt.	Living with the family/separately, if separately please add photo copy, ration cards of both
1	2	3	4	5	6	7

(B) DETAILS ABOUT MOVEABLE/IMMOVABLE PROPERTY.

House/Plot No.	Measurement	Location	Present Value	Name of the owner	Financial Position
1	2	3	4	5	6

(C) DETAILS OF OTHER MOVEABLE PROPERTY

[illegible]

Signature of the Enquiry Officer
with Name, Rank & No. with stamp.